

JUST AND UNJUST WARS

A MORAL ARGUMENT
WITH HISTORICAL
ILLUSTRATIONS

FOURTH EDITION

Michael Walzer



A Member of the Perseus Books Group
New York

Copyright © 1977 by Basic Books,
A Member of the Perseus Books Group
Preface to the fourth edition copyright © 2006 by Basic Books

All rights reserved. Printed in the United States of America. No part of this book may be used or reproduced in any manner whatsoever without written permission except in the case of brief quotations embodied in critical articles and reviews. For information, address Basic Books, 387 Park Avenue South, New York, NY 10016-8810.

Library of Congress Cataloging-in-Publication Data
Walzer, Michael.

Just and unjust wars.

Includes bibliographical references and index.

1. War. I. Title.

U21.2W345 355.02 77-75252

Fourth Edition: ISBN-13: 978-0-465-03707-0; ISBN-10: 0-465-03707-0

DESIGNED BY VINCENT TORRE

EBC 06 07 08 10 9 8 7 6 5 4 3 2 1

CONTENTS

Preface to the Fourth Edition ix

Preface xix

Acknowledgments xxvii

PART ONE

THE MORAL REALITY OF WAR

- 1 Against "Realism" 3
 - The Realist Argument 4
 - The Melian Dialogue*
 - Strategy and Morality 13
 - Historical Relativism 16
 - Three Accounts of Agincourt*
- 2 The Crime of War 21
 - The Logic of War 22
 - The Argument of Karl von Clausewitz*
 - The Limit of Consent 25
 - The Tyranny of War 29
 - General Sherman and the Burning of Atlanta*
- 3 The Rules of War 34
 - The Moral Equality of Soldiers 34
 - The Case of Hitler's Generals*
 - Two Sorts of Rules 41
 - The War Convention 44
 - The Example of Surrender*

PART TWO

THE THEORY OF AGGRESSION

- 4 Law and Order in International Society 51
 - Aggression 51
 - The Rights of Political Communities 53
 - The Case of Alsace-Lorraine*
 - The Legalist Paradigm 58

	Unavoidable Categories	63
	<i>Karl Marx and the Franco-Prussian War</i>	
	The Argument for Appeasement	67
	<i>Czechoslovakia and the Munich Principle</i>	
	<i>Finland</i>	
5	Anticipations	74
	Preventive War and the Balance of Power	76
	<i>The War of the Spanish Succession</i>	
	Pre-emptive Strikes	80
	<i>The Six Day War</i>	
6	Interventions	86
	Self-Determination and Self-Help	87
	<i>The Argument of John Stuart Mill</i>	
	Secession	91
	<i>The Hungarian Revolution</i>	
	Civil War	96
	<i>The American War in Vietnam</i>	
	Humanitarian Intervention	101
	<i>Cuba, 1898, and Bangladesh, 1971</i>	
7	War's Ends, and the Importance of Winning	109
	Unconditional Surrender	111
	<i>Allied Policy in World War II</i>	
	Justice in Settlements	117
	<i>The Korean War</i>	

PART THREE

THE WAR CONVENTION

8	War's Means, and the Importance of Fighting Well	127
	Utility and Proportionality	129
	<i>The Argument of Henry Sidgwick</i>	
	Human Rights	133
	<i>The Rape of the Italian Women</i>	
9	Noncombatant Immunity and Military Necessity	138
	The Status of Individuals	138
	<i>Naked Soldiers</i>	
	The Nature of Necessity (1)	144
	<i>Submarine Warfare: The Laconia Affair</i>	
	Double Effect	151
	<i>Bombardment in Korea</i>	
	<i>The Bombing of Occupied France and the Vemork Raid</i>	

CONTENTS

- 10 War Against Civilians: Sieges and Blockades 160
 - Coercion and Responsibility 161
 - The Siege of Jerusalem, 72 A.D.*
 - The Right to Leave 165
 - The Siege of Leningrad*
 - Taking Aim and the Doctrine of Double Effect 170
 - The British Blockade of Germany*
- 11 Guerrilla War 176
 - Resistance to Military Occupation 176
 - A Partisan Attack*
 - The Rights of Guerrilla Fighters 179
 - The Rights of Civilian Supporters 186
 - The American "Rules of Engagement" in Vietnam*
- 12 Terrorism 197
 - The Political Code 197
 - The Russian Populists, the IRA, and the Stern Gang*
 - The Vietcong Assassination Campaign*
 - Violence and Liberation 204
 - Jean-Paul Sartre and the Battle of Algiers*
- 13 Reprisals 207
 - Deterrence Without Retribution 207
 - The FFI Prisoners at Annecy*
 - The Problem of Peacetime Reprisals 216
 - The Attack on Khibyeh and the Beirut Raid*

PART FOUR

DILEMMAS OF WAR

- 14 Winning and Fighting Well 225
 - "Asinine Ethics" 225
 - Chairman Mao and the Battle of the River Hung*
 - The Sliding Scale and the Argument from Extremity 228
- 15 Aggression and Neutrality 233
 - The Right to Be Neutral 234
 - The Nature of Necessity (2) 239
 - The Rape of Belgium*
 - The Sliding Scale 242
 - Winston Churchill and Norwegian Neutrality*
- 16 Supreme Emergency 251
 - The Nature of Necessity (3) 251
 - Overriding the Rules of War 255
 - The Decision to Bomb German Cities*

- The Limits of Calculation 263
Hiroshima
- 17 Nuclear Deterrence 269
 The Problem of Immoral Threats 269
 Limited Nuclear War 274
The Argument of Paul Ramsey

PART FIVE

THE QUESTION OF RESPONSIBILITY

- 18 The Crime of Aggression: Political Leaders and Citizens 287
 The World of Officials 289
Nuremberg: "The Ministries Case"
 Democratic Responsibilities 296
The American People and the Vietnam War
- 19 War Crimes: Soldiers and Their Officers 304
 In the Heat of Battle 306
Two Accounts of Killing Prisoners
 Superior Orders 309
The My Lai Massacre
 Command Responsibility 316
General Bradley and the Bombing of St. Lô
The Case of General Yamashita
 The Nature of Necessity (4) 323
The Dishonoring of Arthur Harris
 Conclusion 325

Afterword: Nonviolence and the Theory of War 329

Notes 337

Index 355

Against "Realism"

For as long as men and women have talked about war, they have talked about it in terms of right and wrong. And for almost as long, some among them have derided such talk, called it a charade, insisted that war lies beyond (or beneath) moral judgment. War is a world apart, where life itself is at stake, where human nature is reduced to its elemental forms, where self-interest and necessity prevail. Here men and women do what they must to save themselves and their communities, and morality and law have no place. *Inter arma silent leges*: in time of war the law is silent.

Sometimes this silence is extended to other forms of competitive activity, as in the popular proverb, "All's fair in love and war." That means that anything goes—any kind of deceit in love, any kind of violence in war. We can neither praise nor blame; there is nothing to say. And yet we are rarely silent. The language we use to talk about love and war is so rich with moral meaning that it could hardly have been developed except through centuries of argument. Faithfulness, devotion, chastity, shame, adultery, seduction, betrayal; aggression, self-defense, appeasement, cruelty, ruthlessness, atrocity, massacre—all these words are judgments, and judging is as common a human activity as loving or fighting.

It is true, however, that we often lack the courage of our judgments, and especially so in the case of military conflict. The moral posture of mankind is not well represented by that popular proverb about love and war. We would do better to mark a contrast rather than a similarity: before Venus, censorious; before Mars, timid.

Not that we don't justify or condemn particular attacks, but we do so hesitantly and uncertainly (or loudly and recklessly), as if we were not sure that our judgments reach to the reality of war.

The Realist Argument

Realism is the issue. The defenders of *silent leges* claim to have discovered an awful truth: what we conventionally call inhumanity is simply humanity under pressure. War strips away our civilized adornments and reveals our nakedness. They describe that nakedness for us, not without a certain relish: fearful, self-concerned, driven, murderous. They aren't wrong in any simple sense. The words are sometimes descriptive. Paradoxically, the description is often a kind of apology: yes, our soldiers committed atrocities in the course of the battle, but that's what war does to people, that's what war is like. The proverb, all's fair, is invoked in defense of conduct that appears to be unfair. And one urges silence on the law when one is engaged in activities that would otherwise be called unlawful. So there are arguments here that will enter into my own argument: justifications and excuses, references to necessity and duress, that we can recognize as forms of moral discourse and that have or don't have force in particular cases. But there is also a general account of war as a realm of necessity and duress, the purpose of which is to make discourse about particular cases appear to be idle chatter, a mask of noise with which we conceal, even from ourselves, the awful truth. It is that general account that I have to challenge before I can begin my own work, and I want to challenge it at its source and in its most compelling form, as it is put forward by the historian Thucydides and the philosopher Thomas Hobbes. These two men, separated by 2,000 years, are collaborators of a kind, for Hobbes translated Thucydides' *History of the Peloponnesian War* and then generalized its argument in his own *Leviathan*. It is not my purpose here to write a full philosophical response to Thucydides and Hobbes. I wish only to suggest, first by argument and then by example, that the judgment of war and of wartime conduct is a serious enterprise.

The Melian Dialogue

The dialogue between the Athenian generals Cleomedes and Tisias and the magistrates of the island state of Melos is one of the high points of Thucydides' *History* and the climax of his realism. Melos was a Spartan colony, and its people had "therefore refused to be subject, as the rest of the islands were, unto the Athenians; but rested at first neutral; and afterwards, when the Athenians put them to it by wasting of their lands, they entered into open war."¹ This is a classic account of aggression, for to commit aggression is simply to "put people to it" as Thucydides describes. But such a description, he seems to say, is merely external; he wants to show us the inner meaning of war. His spokesmen are the two Athenian generals, who demand a parley and then speak as generals have rarely done in military history. Let us have no fine words about justice, they say. We for our part will not pretend that, having defeated the Persians, our empire is deserved; you must not claim that having done no injury to the Athenian people, you have a right to be let alone. We will talk instead of what is feasible and what is necessary. For this is what war is really like: "they that have odds of power exact as much as they can, and the weak yield to such conditions as they can get."

It is not only the Melians here who bear the burdens of necessity. The Athenians are driven, too; they must expand their empire, Cleomedes and Tisias believe, or lose what they already have. The neutrality of Melos "will be an argument of our weakness, and your hatred of our power, among those we have rule over." It will inspire rebellion throughout the islands, wherever men and women are "offended with the necessity of subjection"—and what subject is not offended, eager for freedom, resentful of his conquerors? When the Athenian generals say that men "will everywhere reign over such as they be too strong for," they are not only describing the desire for glory and command, but also the more narrow necessity of inter-state politics: reign or be subject. If they do not conquer when they can, they only reveal weakness and invite attack; and so, "by a necessity of nature" (a phrase Hobbes later made his own), they conquer when they can.

The Melians, on the other hand, are too weak to conquer. They face a harsher necessity: yield or be destroyed. "For you have not in hand a match of valor upon equal terms . . . but rather a consultation upon your safety . . ." The rulers of Melos, however, value freedom above safety: "If you then to retain your command, and

your vassals to get loose from you, will undergo the utmost danger: would it not in us, that be already free, be great baseness and cowardice, if we should not encounter anything whatsoever rather than suffer ourselves to be brought into bondage?" Though they know that it will be a "hard matter" to stand against the power and fortune of Athens, "nevertheless we believe that, for fortune, we shall be nothing inferior, as having the gods on our side, because we stand innocent against men unjust." And as for power, they hope for assistance from the Spartans, "who are of necessity obliged, if for no other cause, yet for consanguinity's sake and for their own honor to defend us." But the gods, too, reign where they can, reply the Athenian generals, and consanguinity and honor have nothing to do with necessity. The Spartans will (necessarily) think only of themselves: "most apparently of all men, they hold for honorable that which pleaseth and for just that which profiteth."

So the argument ended. The magistrates refused to surrender; the Athenians laid siege to their city; the Spartans sent no help. Finally, after some months of fighting, in the winter of 416 B.C., Melos was betrayed by several of its citizens. When further resistance seemed impossible, the Melians "yielded themselves to the discretion of the Athenians: who slew all the men of military age, made slaves of the women and children; and inhabited the place with a colony sent thither afterwards of 500 men of their own."

The dialogue between the generals and the magistrates is a literary and philosophical construction of Thucydides. The magistrates speak as they well might have done, but their conventional piety and heroism is only a foil to what the classical critic Dionysius calls the "depraved shrewdness" of the Athenian generals.² It is the generals who have often seemed unbelievable. Their words, writes Dionysius, "were appropriate to oriental monarchs . . . but unfit to be spoken by Athenians . . ."* Perhaps Thucydides means us to notice the unfitness, not so much of the words but of the policies

* Even oriental monarchs are not quite so toughminded as the Athenian generals. According to Herodotus, when Xerxes first disclosed his plans for an invasion of Greece, he spoke in more conventional terms: "I will bridge the Hellespont and march an army through Europe into Greece, and punish the Athenians for the outrage they committed upon my father and upon us." (*The Histories*, Book 7, trans. Aubrey de Selincourt) The reference is to the burning of Sardis, which we may take as the pretext for the Persian invasion. The example bears out Francis Bacon's assertion that "there is that justice imprinted in the nature of men that they enter not upon wars (whereof so many calamities do ensue) but upon some, at least specious, grounds and quarrels." (Essay 29, "Of the True Greatness of Kingdoms and Estates")

Against "Realism"

they were used to defend, and thinks we might have missed it had he permitted the generals to speak as they probably in fact spoke, weaving "fair pretenses" over their vile actions. We are to understand that Athens is no longer itself. Cleomedes and Tisias do not represent that noble people who fought the Persians in the name of freedom and whose politics and culture, as Dionysius says, "exercised such a humanizing influence on everyday life." They represent instead the imperial decadence of the city state. It is not that they are war criminals in the modern sense; that idea is alien to Thucydides. But they embody a certain loss of ethical balance, of restraint and moderation. Their statesmanship is flawed, and their "realistic" speeches provide an ironic contrast to the blindness and arrogance with which the Athenians only a few months later launched the disastrous expedition to Sicily. The *History*, on this view, is a tragedy and Athens itself the tragic hero.³ Thucydides has given us a morality play in the Greek style. We can glimpse his meaning in Euripides' *The Trojan Women*, written in the immediate aftermath of the conquest of Melos and undoubtedly intended to suggest the human significance of slaughter and slavery—and to predict a divine retribution:⁴

How ye are blind
Ye treaders down of cities, ye that cast
Temples to desolation, and lay waste
Tombs, the untrodden sanctuaries where lie
The ancient dead; yourselves so soon to die!

But Thucydides seems in fact to be making a rather different, and a more secular, statement than this quotation suggests, and not about Athens so much as about war itself. He probably did not mean the harshness of the Athenian generals to be taken as a sign of depravity, but rather as a sign of impatience, toughmindedness, honesty—qualities of mind not inappropriate in military commanders. He is arguing, as Werner Jaeger has said, that "the principle of force forms a realm of its own, with laws of its own," distinct and separate from the laws of moral life.⁵ This is certainly the way Hobbes read Thucydides, and it is the reading with which we must come to grips. For if the realm of force is indeed distinct and if this is an accurate account of its laws, then one could no more criticize the Athenians for their wartime policies than one could criticize a stone for falling downwards. The slaughter of the Melians is explained by reference to the circumstances of war and the necessities of nature; and again, there is nothing to say. Or rather, one can say anything, call necessity cruel and war hellish; but while

these statements may be true in their own terms, they do not touch the political realities of the case or help us understand the Athenian decision.

It is important to stress, however, that Thucydides has told us nothing at all about the Athenian decision. And if we place ourselves, not in the council room at Melos where a cruel policy was being expounded, but in the assembly at Athens where that policy was first adopted, the argument of the generals has a very different ring. In the Greek as in the English language, the word *necessity* "doubles the parts of indispensable and inevitable."⁶ At Melos, Cleomedes and Tisias mixed the two of these, stressing the last. In the assembly they could have argued only about the first, claiming, I suppose, that the destruction of Melos was necessary (indispensable) for the preservation of the empire. But this claim is rhetorical in two senses. First, it evades the moral question of whether the preservation of the empire was itself necessary. There were some Athenians, at least, who had doubts about that, and more who doubted that the empire had to be a uniform system of domination and subjection (as the policy adopted for Melos suggested). Secondly, it exaggerates the knowledge and foresight of the generals. They are not saying with certainty that Athens will fall unless Melos is destroyed; their argument has to do with probabilities and risks. And such arguments are always arguable. Would the destruction of Melos really reduce Athenian risks? Are there alternative policies? What are the likely costs of this one? Would it be right? What would other people think of Athens if it were carried out?

Once the debate begins, all sorts of moral and strategic questions are likely to come up. And for the participants in the debate, the outcome is not going to be determined "by a necessity of nature," but by the opinions they hold or come to hold as a result of the arguments they hear and then by the decisions they freely make, individually and collectively. Afterwards, the generals claim that a certain decision was inevitable; and that, presumably, is what Thucydides wants us to believe. But the claim can only be made afterwards, for inevitability here is mediated by a process of political deliberation, and Thucydides could not know what was inevitable until that process had been completed. Judgments of necessity in this sense are always retrospective in character—the work of historians, not historical actors.

Now, the moral point of view derives its legitimacy from the perspective of the actor. When we make moral judgments, we try to recapture that perspective. We reiterate the decision-making

Against "Realism"

process, or we rehearse our own future decisions, asking what we would have done (or what we would do) in similar circumstances. The Athenian generals recognize the importance of such questions, for they defend their policy certain "that you likewise, and others that should have the same power which we have, would do the same." But that is a dubious knowledge, especially so once we realize that the "Melian decree" was sharply opposed in the Athenian assembly. Our standpoint is that of citizens debating the decree. What *should* we do?

We have no account of the Athenian decision to attack Melos or of the decision (which may have been taken at the same time) to kill and enslave its people. Plutarch claims that it was Alcibiades, chief architect of the Sicilian expedition, who was "the principal cause of the slaughter . . . having spoken in favor of the decree." He played the part of Cleon in the debate that Thucydides does record, that occurred some years earlier, over the fate of Mytilene. It is worth glancing back at that earlier argument. Mytilene had been an ally of Athens from the time of the Persian War; it was never a subject city in any formal way, but bound by treaty to the Athenian cause. In 428, it rebelled and formed an alliance with the Spartans. After considerable fighting, the city was captured by Athenian forces, and the assembly determined "to put to death . . . all the men of Mytilene that were of age, and to make slaves of the women and children: laying to their charge the revolt itself, in that they revolted not being in subjection as others were . . ."⁸ But the following day the citizens "felt a kind of repentance . . . and began to consider what a great and cruel decree it was, that not the authors only, but that the whole city should be destroyed." It is this second debate that Thucydides has recorded, or some part of it, giving us two speeches, that of Cleon upholding the original decree and that of Diodotus urging its revocation. Cleon argues largely in terms of collective guilt and retributive justice; Diodotus offers a critique of the deterrent effects of capital punishment. The assembly accepts Diodotus' position, convinced apparently that the destruction of Mytilene would not uphold the force of treaties or ensure the stability of the empire. It is the appeal to interest that triumphs—as has often been pointed out—though it should be remembered that the occasion for the appeal was the repentance of the citizens. Moral anxiety, not political calculation, leads them to worry about the effectiveness of their decree.

In the debate over Melos, the positions must have been reversed. Now there was no retributivist argument to make, for the Melians

had done Athens no injury. Alcibiades probably talked like Thucydides' generals, though with the all-important difference I have already noted. When he told his fellow citizens that the decree was necessary, he didn't mean that it was ordained by the laws that govern the realm of force; he meant merely that it was needed (in his view) to reduce the risks of rebellion among the subject cities of the Athenian empire. And his opponents probably argued, like the Melians, that the decree was dishonorable and unjust and would more likely excite resentment than fear throughout the islands, that Melos did not threaten Athens in any way, and that other policies would serve Athenian interests and Athenian self-esteem. Perhaps they also reminded the citizens of their repentance in the case of Mytilene and urged them once again to avoid the cruelty of massacre and enslavement. How Alcibiades won out, and how close the vote was, we don't know. But there is no reason to think that the decision was predetermined and debate of no avail: no more with Melos than with Mytilene. Stand in imagination in the Athenian assembly, and one can still feel a sense of freedom.

But the realism of the Athenian generals has a further thrust. It is not only a denial of the freedom that makes moral decision possible; it is a denial also of the meaningfulness of moral argument. The second claim is closely related to the first. If we must act in accordance with our interests, driven by our fears of one another, then talk about justice cannot possibly be anything more than talk. It refers to no purposes that we can make our own and to no goals that we can share with others. That is why the Athenian generals could have woven "fair pretenses" as easily as the Melian magistrates; in discourse of this sort anything can be said. The words have no clear references, no certain definitions, no logical entailments. They are, as Hobbes writes in *Leviathan*, "ever used with relation to the person that useth them," and they express that person's appetites and fears and nothing else. It is only "most apparent" in the Spartans, but true for everyone, that "they hold for honorable that which pleaseth them and for just that which profiteth." Or, as Hobbes later explained, the names of the virtues and vices are of "uncertain signification."⁹

For one calleth wisdom, what another calleth fear; and one cruelty what another justice; one prodigality, what another magnanimity . . . etc. And therefore such names can never be true grounds of any ratiocination.

"Never"—until the sovereign, who is also the supreme linguistic authority, fixes the meaning of the moral vocabulary; but in the

Against "Realism"

state of war, "*never*" without qualification, because in that state, by definition, no sovereign rules. In fact, even in civil society, the sovereign does not entirely succeed in bringing certainty into the world of virtue and vice. Hence moral discourse is always suspect, and war is only an extreme case of the anarchy of moral meanings. It is generally true, but especially so in time of violent conflict, that we can understand what other people are saying only if we see through their "fair pretenses" and translate moral talk into the harder currency of interest talk. When the Melians insist that their cause is just, they are saying only that they don't want to be subject; and had the generals claimed that Athens deserved its empire, they would simply have been expressing the lust for conquest or the fear of overthrow.

This is a powerful argument because it plays upon the common experience of moral disagreement—painful, sustained, exasperating, and endless. For all its realism, however, it fails to get at the realities of that experience or to explain its character. We can see this clearly, I think, if we look again at the argument over the Mytilene decree. Hobbes may well have had this debate in mind when he wrote, "and one [calleth] cruelty what another justice . . ." The Athenians repented of their cruelty, writes Thucydides, while Cleon told them that they had not been cruel at all but justly severe. Yet this was in no sense a disagreement over the meaning of words. Had there been no common meanings, there could have been no debate at all. The cruelty of the Athenians consisted in seeking to punish not only the authors of the rebellion but others as well, and Cleon agreed that that would indeed be cruel. He then went on to argue, as he had to do given his position, that in Mytilene there were no "others." "Let not the fault be laid upon a few, and the people absolved. For they have all alike taken arms against us . . ."

I cannot pursue the argument further, since Thucydides doesn't, but there is an obvious rejoinder to Cleon, having to do with the status of the women and children of Mytilene. This might involve the deployment of additional moral terms (innocence, for example); but it would not hang—any more than the argument about cruelty and justice hangs—on idiosyncratic definitions. In fact, definitions are not at issue here, but descriptions and interpretations. The Athenians shared a moral vocabulary, shared it with the people of Mytilene and Melos; and allowing for cultural differences, they share it with us too. They had no difficulty, and we have none, in understanding the claim of the Melian magistrates that the invasion of their island was unjust. It is in applying the

agreed-upon words to actual cases that we come to disagree. These disagreements are in part generated and always compounded by antagonistic interests and mutual fears. But they have other causes, too, which help to explain the complex and disparate ways in which men and women (even when they have similar interests and no reason to fear one another) position themselves in the moral world. There are, first of all, serious difficulties of perception and information (in war and politics generally), and so controversies arise over "the facts of the case." There are sharp disparities in the weight we attach even to values we share, as there are in the actions we are ready to condone when these values are threatened. There are conflicting commitments and obligations that force us into violent antagonism even when we see the point of one another's positions. All this is real enough, and common enough: it makes morality into a world of good-faith quarrels as well as a world of ideology and verbal manipulation.

In any case, the possibilities for manipulation are limited. Whether or not people speak in good faith, they cannot say just anything they please. Moral talk is coercive; one thing leads to another. Perhaps that's why the Athenian generals did not want to begin. A war called unjust is not, to paraphrase Hobbes, a war disliked; it is a war disliked for particular reasons, and anyone making the charge is required to provide particular sorts of evidence. Similarly, if I claim that I am fighting justly, I must also claim that I was attacked ("put to it," as the Melians were), or threatened with attack, or that I am coming to the aid of a victim of someone else's attack. And each of these claims has its own entailments, leading me deeper and deeper into a world of discourse where, though I can go on talking indefinitely, I am severely constrained in what I can say. I must say this or that, and at many points in a long argument this or that will be true or false. We don't have to translate moral talk into interest talk in order to understand it; morality refers in its own way to the real world.

Let us consider a Hobbist example. In Chapter XXI of *Leviathan*, Hobbes urges that we make allowance for the "natural timorousness" of mankind. "When armies fight, there is on one side, or both a running away; yet when they do it not out of treachery, but fear, they are not esteemed to do it unjustly, but dishonorably." Now, judgments are called for here: we are to distinguish cowards from traitors. If these are words of "inconstant signification," the task is impossible and absurd. Every traitor would plead natural

Against "Realism"

timorousness, and we would accept the plea or not depending on whether the soldier was a friend or an enemy, an obstacle to our advancement or an ally and supporter. I suppose we sometimes do behave that way, but it is not the case (nor does Hobbes, when it comes to cases, suppose that it is) that the judgments we make can only be understood in these terms. When we charge a man with treason, we have to tell a very special kind of story about him, and we have to provide concrete evidence that the story is true. If we call him a traitor when we cannot tell that story, we are not using words inconstantly, we are simply lying.

Strategy and Morality

Morality and justice are talked about in much the same way as military strategy. Strategy is the other language of war, and while it is commonly said to be free from the difficulties of moral discourse, its use is equally problematic. Though generals agree on the meaning of strategic terms—entrapment, retreat, flanking maneuver, concentration of forces, and so on—they nevertheless disagree about strategically appropriate courses of action. They argue about what ought to be done. After the battle, they disagree about what happened, and if they were defeated, they argue about who was to blame. Strategy, like morality, is a language of justification.* Every confused and cowardly commander describes his hesitations and panics as part of an elaborate plan; the strategic vocabulary is as available to him as it is to a competent commander. But that is not to say that its terms are meaningless. It would be a great triumph

* Hence we can "unmask" strategic discourse just as Thucydides did with moral discourse. Imagine that the two Athenian generals, after their dialogue with the Melians, return to their camp to plan the coming battle. The senior in command speaks first: "Don't give me any fine talk about the need to concentrate our forces or the importance of strategic surprise. We'll simply call for a frontal assault; the men will organize themselves as best they can; things are going to be confused anyway. I need a quick victory here, so that I can return to Athens covered with glory before the debate on the Sicilian campaign begins. We'll have to accept some risks; but that doesn't matter since the risks will be yours, not mine. If we are beaten, I'll contrive to blame you. That's what war is like." Why is strategy the language of hard-headed men? One sees through it so easily . . .

The Rules of War

The Moral Equality of Soldiers

Among soldiers who choose to fight, restraints of various sorts arise easily and, one might say, naturally, the product of mutual respect and recognition. The stories of chivalric knights are for the most part stories, but there can be no doubt that a military code was widely shared in the later Middle Ages and sometimes honored. The code was designed for the convenience of the aristocratic warriors, but it also reflected their sense of themselves as persons of a certain sort, engaged in activities that were freely chosen. Chivalry marked off knights from mere ruffians and bandits and also from peasant soldiers who bore arms as a necessity. I suppose that it survives today: some sense of military honor is still the creed of the professional soldier, the sociological if not the lineal descendant of the feudal knight. But notions of honor and chivalry seem to play only a small part in contemporary combat. In the literature of war, the contrast between "then and now" is commonly made—not very accurately, but with a certain truth, as in this poem by Louis Simpson:¹

At Malplaquet and Waterloo
They were polite and proud,
They primed their guns with billets-doux
And, as they fired, bowed.
At Appomattox too, it seems
Some things were understood . . .
But at Verdun and at Bastogne

The Rules of War

There was a great recoil,
The blood was bitter to the bone
The trigger to the soul. . . .

Chivalry, it is often said, was the victim of democratic revolution and of revolutionary war: popular passion overcame aristocratic honor.² That draws the line before Waterloo and Appomattox, though still not quite correctly. It is the success of coercion that makes war ugly. Democracy is a factor only insofar as it increases the legitimacy of the state and then the effectiveness of its coercive power, not because the people in arms are a bloodthirsty mob fired by political zeal and committed to total war (in contrast to their officers, who would fight with decorum if they could). It is not what the people do when they enter the arena of battle that turns war into a "circus of slaughter," but, as I have already argued, the mere fact that they are there. Soldiers died by the thousands at Verdun and the Somme simply because they were available, their lives nationalized, as it were, by the modern state. They didn't choose to throw themselves at barbed wire and machine guns in fits of patriotic enthusiasm. The blood is bitter to their bones, too; they, too, would fight with decorum if they could. Their patriotism is, of course, a partial explanation of their availability. The discipline of the state is not merely imposed on them; it is also a discipline they accept, thinking that they have to for the sake of their families and their country. But the common features of contemporary combat: hatred for the enemy, impatience with all restraint, zeal for victory—these are the products of war itself whenever masses of men have to be mobilized for battle. They are as much the contribution of modern warfare to democratic politics as of democracy to war.

In any case, the death of chivalry is not the end of moral judgment. We still hold soldiers to certain standards, even though they fight unwillingly—in fact, precisely because we assume that they all fight unwillingly. The military code is reconstructed under the conditions of modern warfare so that it comes to rest not on aristocratic freedom but on military servitude. Sometimes freedom and servitude co-exist, and then we can study the difference between them in clinical detail. Whenever the game of war is revived, the elaborate courtesies of the chivalric age are revived with it—as among aviators in World War I, for example, who imagined themselves (and who have survived in the popular imagination) as airborne knights. Compared to the serfs on the ground, these were aristocrats indeed: they fought in accordance with a strict code of

conduct that they invented themselves.³ There was thralldom in the trenches, however, and mutual recognition took a very different form. Briefly, on Christmas Day 1914, German and French troops came together, drank and sang together, in the no-man's land between their lines. But such moments are rare in recent history, and they are not occasions for moral invention. The modern rules of war depend upon an abstract rather than a practical fellowship.

Soldiers cannot endure modern warfare for long without blaming someone for their pain and suffering. While it may be an example of what Marxists call "false consciousness" that they do not blame the ruling class of their own or of the enemy country, the fact is that their condemnation focuses most immediately on the men with whom they are engaged. The level of hatred is high in the trenches. That is why enemy wounded are often left to die and prisoners are killed—like murderers lynched by vigilantes—as if the soldiers on the other side were personally responsible for the war. At the same time, however, we know that they are not responsible. Hatred is interrupted or overridden by a more reflective understanding, which one finds expressed again and again in letters and war memoirs. It is the sense that the enemy soldier, though his war may well be criminal, is nevertheless as blameless as oneself. Armed, he is an enemy; but he isn't *my* enemy in any specific sense; the war itself isn't a relation between persons but between political entities and their human instruments. These human instruments are not comrades-in-arms in the old style, members of the fellowship of warriors; they are "poor sods, just like me," trapped in a war they didn't make. I find in them my moral equals. That is not to say simply that I acknowledge their humanity, for it is not the recognition of fellow men that explains the rules of war; criminals are men too. It is precisely the recognition of men who are not criminals.

They can try to kill me, and I can try to kill them. But it is wrong to cut the throats of their wounded or to shoot them down when they are trying to surrender. These judgments are clear enough, I think, and they suggest that war is still, somehow, a rule-governed activity, a world of permissions and prohibitions—a moral world, therefore, in the midst of hell. Though there is no license for war-makers, there is a license for soldiers, and they hold it without regard to which side they are on; it is the first and most important of their war rights. They are entitled to kill, *not anyone*, but men whom we know to be victims. We could hardly understand such a title if we did not recognize that they are victims too.

The Rules of War

Hence the moral reality of war can be summed up in this way: when soldiers fight freely, choosing one another as enemies and designing their own battles, their war is not a crime; when they fight without freedom, their war is not their crime. In both cases, military conduct is governed by rules; but in the first the rules rest on mutuality and consent, in the second on a shared servitude. The first case raises no difficulties; the second is more problematic. We can best explore its problems, I think, if we turn from the trenches and the front lines to the general staff at the rear, and from the war against the Kaiser to the war against Hitler—for at that level and in that struggle, the recognition of “men who are not criminals” is hard indeed.

The Case of Hitler's Generals

In 1942, General von Arnim was captured in North Africa, and it was proposed by members of Dwight Eisenhower's staff that the American commander “should observe the custom of by-gone days” and permit von Arnim to visit him before he was sent into captivity. Historically, such visits were not merely matters of courtesy; they were occasions for the reaffirmation of the military code. Thus General von Ravenstein, captured by the British that same year, reports: “I was taken to see . . . Auchinleck himself in his office. He shook hands with me and said: ‘I know you well by name. You and your division have fought with chivalry.’”⁴ Eisenhower, however, refused to allow the visit. In his memoirs, he explained his reasons:⁵

The custom had its origin in the fact that the mercenary soldiers of old had no real enmity toward their opponents. Both sides fought for love of a fight, out of a sense of duty or, more probably, for money . . . The tradition that all professional soldiers are comrades in arms has . . . persisted to this day. For me, World War II was far too personal a thing to entertain such feelings. Daily as it progressed there grew within me the conviction that, as never before . . . the forces that stood for human good and men's rights were . . . confronted by a completely evil conspiracy with which no compromise could be tolerated.

On this view, it doesn't matter whether or not von Arnim had fought well; his crime was to have fought at all. And similarly, it may not matter how General Eisenhower fights. Against an evil conspiracy, what is crucial is to win. Chivalry loses its rationale, and there are no limits left except “the limitations of force itself.”

That was Sherman's view too, but it does not account for the

judgments that we make of his conduct, or of Eisenhower's, or even of von Arnim's and von Ravenstein's. Consider now the better-known case of Erwin Rommel: he, too, was one of Hitler's generals, and it is hard to imagine that he could have escaped the moral infamy of the war he fought. Yet he was, so we are told by one biographer after another, an honorable man. "While many of his colleagues and peers in the German army surrendered their honor by collusion with the iniquities of Nazism, Rommel was never defiled." He concentrated, like the professional he was, on "the soldier's task of fighting." And when he fought, he maintained the rules of war. He fought a bad war well, not only militarily but also morally. "It was Rommel who burned the Commando Order issued by Hitler on 28 October 1942, which laid down that all enemy soldiers encountered behind the German line were to be killed at once . . ."⁶ He was one of Hitler's generals, but he did not shoot prisoners. Is such a man a comrade? Can one treat him with courtesy, can one shake his hand? These are the fine points of moral conduct; I do not know how they might be resolved, though I am sympathetic with Eisenhower's resolution. But I am sure, nevertheless, that Rommel should be praised for burning the Commando Order, and everyone who writes about these matters seems equally sure, and that implies something very important about the nature of war.

It would be very odd to praise Rommel for not killing prisoners unless we simultaneously refused to blame him for Hitler's aggressive wars. For otherwise he is simply a criminal, and all the fighting he does is murder or attempted murder, whether he aims at soldiers in battle or at prisoners or at civilians. The chief British prosecutor at Nuremberg put this argument into the language of international law when he said, "The killing of combatants is justifiable . . . only where the war itself is legal. But where the war is illegal . . . there is nothing to justify the killing and these murders are not to be distinguished from those of any other lawless robber bands."⁷ And then Rommel's case would be exactly like that of a man who invades someone else's home and kills only some of the inhabitants, sparing the children, say, or an aged grandmother: a murderer, no doubt, though not one without a drop of human kindness. But we don't view Rommel that way: why not? The reason has to do with the distinction of *jus ad bellum* and *jus in bello*. We draw a line between the war itself, for which soldiers are not responsible, and the conduct of the war, for which they are responsible, at least

The Rules of War

within their own sphere of activity. Generals may well straddle the line, but that only suggests that we know pretty well where it should be drawn. We draw it by recognizing the nature of political obedience. Rommel was a servant, not a ruler, of the German state; he did not choose the wars he fought but, like Prince Andrey, served his "Tsar and country." We still have misgivings in his case, and will continue to have them, for he was more than just unlucky in his "Tsar and country." But by and large we don't blame a soldier, even a general, who fights for his own government. He is not the member of a robber band, a willful wrongdoer, but a loyal and obedient subject and citizen, acting sometimes at great personal risk in a way he thinks is right. We allow him to say what an English soldier says in Shakespeare's *Henry V*: "We know enough if we know we are the king's men. Our obedience to the king wipes the crime of it out of us."⁸ Not that his obedience can never be criminal; for when he violates the rules of war, superior orders are no defence. The atrocities that he commits are his own; the war is not. It is conceived, both in international law and in ordinary moral judgment, as the king's business—a matter of state policy, not of individual volition, except when the individual is the king.

It might, however, be thought a matter of individual volition whether particular men join the army and participate in the war. Catholic writers have long argued that they ought not to volunteer, ought not to serve at all, if they know the war to be unjust. But the knowledge required by Catholic doctrine is hard to come by; and in case of doubt, argues the best of the Schoolmen, Francisco de Vitoria, subjects must fight—the guilt falling, as in *Henry V*, on their leaders. Vitoria's argument suggests how firmly political life is set, even in the pre-modern state, against the very idea of volition in time of war. "A prince is not able," he writes, "and ought not always to render reasons for the war to his subjects, and if the subjects cannot serve in the war except they are first satisfied of its justice, the state would fall into grave peril . . ."⁹ Today, of course, most princes work hard to satisfy their subjects of the justice of their wars; they "render reasons," though not always honest ones. It takes courage to doubt these reasons, or to doubt them in public; and so long as they are only doubted, most men will be persuaded (by arguments something like Vitoria's) to fight. Their routine habits of law-abidingness, their fear, their patriotism, their moral investment in the state, all favor that course. Or, alterna-

tively, they are so terribly young when the disciplinary system of the state catches them up and sends them into war that they can hardly be said to make a moral decision at all.¹⁰

From my mother's sleep I fell into the State.

And then how can we blame them for (what we perceive to be) the wrongful character of their war?*

Soldiers are not, however, entirely without volition. Their will is independent and effective only within a limited sphere, and for most of them that sphere is narrow. But except in extreme cases, it never completely disappears. And at those moments in the course of the fighting when they must choose, like Rommel, to kill prisoners or let them live, they are not mere victims or servants bound to obedience; they are responsible for what they do. We shall have to qualify that responsibility when we come to consider it in detail, for war is still hell, and hell is a tyranny where soldiers are subject to all sorts of duress. But the judgments we actually make of their conduct demonstrate, I think, that within that tyranny we have carved out a constitutional regime: even the pawns of war have rights and obligations.

During the past hundred years, these rights and obligations have been specified in treaties and agreements, written into international law. The very states that enlist the pawns of war have stipulated the moral character of their mutual slaughter. Initially, this stipulation was not based upon any notion of the equality of soldiers but upon the equality of sovereign states, which claimed for themselves the same right to fight (right to make war) that individual soldiers more obviously possess. The argument that I have made on behalf of soldiers was first made on behalf of states—or rather, on behalf of their leaders, who, we were told, are never willful criminals, whatever the character of the wars they begin, but statesmen serving the national interest as best they can. When I discuss the theory of aggression and of responsibility for aggression

* But these young men, Robert Nozick argues, "are certainly not encouraged to think for themselves by the practice of absolving them of all responsibility for their actions within the rules of war." That is right; they are not. But we cannot blame them in order to encourage the others unless they are actually blameworthy. Nozick insists that they are: "It is a soldier's responsibility to determine if his side's cause is just . . ." The conventional refusal to impose that responsibility flatly and across the board is "morally elitist." (*Anarchy, State, and Utopia*, New York, 1974, p. 100.) But it isn't elitist merely to recognize the existence of authority structures and socialization processes in the political community, and it may be morally insensitive not to. I do agree with Nozick that "some bucks stop with each of us." A great deal of this book is concerned with trying to say which ones those are.

The Rules of War

sion, I will have to explain why that is an inadequate description of what statesmen do.¹¹ For now, it is enough to say that this view of sovereignty and political leadership, which was never in accord with ordinary moral judgment, has also lost its legal standing, replaced in the years since World War I by the formal designation of war-making as a criminal activity. However, the rules of engagement have not been replaced but expanded and elaborated, so that we now have both a ban on war and a code of military conduct. The dualism of our moral perceptions is established in the law.

War is a "legal condition which equally permits two or more groups to carry on a conflict by armed force."¹² It is also, and for our purposes more importantly, a moral condition, involving the same permissiveness, not in fact at the level of sovereign states, but at the level of armies and individual soldiers. Without the equal right to kill, war as a rule-governed activity would disappear and be replaced by crime and punishment, by evil conspiracies and military law enforcement. That disappearance seems to be heralded by the United Nations Charter, where the word "war" does not appear but only "aggression," "self-defense," "international enforcement," and so on. But even the UN's "police action" in Korea was still a war, since the soldiers who fought in it were moral equals even if the states were not. The rules of war were as relevant there as in any other "conflict by armed force," and they were equally relevant to the aggressor, the victim, and the police.

Two Sorts of Rules

The rules of war consist of two clusters of prohibitions attached to the central principle that soldiers have an equal right to kill. The first cluster specifies when and how they can kill, the second whom they can kill. My chief concern is with the second, for there the formulation and reformulation of the rules reach to one of the hardest questions in the theory of war—that is, how those victims of war who can be attacked and killed are to be distinguished from those who cannot. I don't believe that this question must be answered in this or that specific way if war is to be a moral condition. It is necessary, however, that at any particular moment there be

an answer. War is distinguishable from murder and massacre only when restrictions are established on the reach of battle.

The first set of rules does not involve any such fundamental issue. Rules specifying how and when soldiers can be killed are by no means unimportant, and yet the morality of war would not be radically transformed were they to be abolished altogether. Consider, for example, those battles described by anthropologists in which warriors fight with bows and unfeathered arrows. The arrows fly less accurately than they would if they were feathered; they can be dodged; few men are killed.¹³ It is clearly a good rule, then, that arrows not be feathered, and we may fairly condemn the warrior who first arms himself with the superior and forbidden weapon and hits his enemy. Yet the man he kills was liable to be killed in any case, and a collective (intertribal) decision to fight with feathered arrows would not violate any basic moral principle. The case is the same with all other rules of this kind: that soldiers be preceded into battle by a herald carrying a red flag, that fighting always be broken off at sunset, that ambushes and surprise attacks be prohibited, and so on. Any rule that limits the intensity and duration of combat or the suffering of soldiers is to be welcomed, but none of these restraints seem crucial to the idea of war as a moral condition. They are circumstantial in the literal sense of that word, highly particularized and local to a specific time and place. Even if in practise they endure for many years, they are always susceptible to the transformations brought about by social change, technological innovation, and foreign conquest.*

The second set of rules does not seem similarly susceptible. At least, the general structure of its provisions seems to persist without reference to social systems and technologies—as if the rules involved were (as I think they are) more closely connected to universal notions of right and wrong. Their tendency is to set certain classes of people outside the permissible range of warfare, so that killing any of their members is not a legitimate act of war but a crime. Though their details vary from place to place, these rules point toward the general conception of war as a *combat between combatants*, a conception that turns up again and again in anthropological and historical accounts. It is most dramatically exemplified when war is actually a combat between military cham-

* They are also susceptible to the kind of reciprocal violation legitimized by the doctrine of reprisal: violated by one side, they can be violated by the other. But this does not seem to be true of the other sort of rules, described below. See the discussion of reprisals in chapter 13.

The Rules of War

pions, as among many primitive peoples, or in the Greek epics, or in the biblical tale of David and Goliath. "Let no man's heart fail within him," says David, "thy servant will go and fight this Philistine."¹⁴ Once such a contest has been agreed upon, soldiers themselves are protected from the hell of war. In the Middle Ages, single combat was advocated for precisely this reason: "Better for one to fall than the whole army."¹⁵ More often, however, protection has been offered only to those people who are not trained and prepared for war, who do not fight or cannot: women and children, priests, old men, the members of neutral tribes, cities, or states, wounded or captured soldiers.* What all these groups have in common is that they are not currently engaged in the business of war. Depending on one's social or cultural perspective, killing them may appear wanton, unchivalrous, dishonorable, brutal, or murderous. But it is very likely that some general principle is at work in all these judgments, connecting immunity from attack with military disengagement. Any satisfactory account of the moral reality of war must specify that principle and say something about its force. I shall attempt to do both these things later on.

The historical specifications of the principle are, however, conventional in character, and the war rights and obligations of soldiers follow from the conventions and not (directly) from the principle, whatever its force. Once again, war is a social creation. The rules actually observed or violated in this or that time and place are necessarily a complex product, mediated by cultural and religious norms, social structures, formal and informal bargaining between belligerent powers, and so on. Hence, the details of noncombatant immunity are likely to seem as arbitrary as the rules that determine when battles should start and stop or what weapons may be used. They are more important by far, but similarly subject to social revision. Exactly like law in domestic society, they will often represent an incomplete or distorted embodiment of the relevant moral principle. They are subject, then, to philosophical criticism. Indeed, criticism is a crucial part of the historical process through which the rules are made. We might say that war is a philosophical creation. Long before philosophers are satisfied with it, however,

* The lists are often more specific and more picturesque than this, reflecting the character of a particular culture. Here is an example from an ancient Indian text, according to which the following groups of people are not to be subjected to the exigencies of battle: "Those who look on without taking part, those afflicted with grief . . . those who are asleep, thirsty, or fatigued or are walking along the road, or have a task on hand unfinished, or who are proficient in fine art." (S. V. Viswanatha, *International Law in Ancient India*, Bombay, 1925, p. 156.)

soldiers are bound by its canons. And they are equally bound, because of their own equality, and without reference to the content or the incompleteness of the canons.

The War Convention

I propose to call the set of articulated norms, customs, professional codes, legal precepts, religious and philosophical principles, and reciprocal arrangements that shape our judgments of military conduct *the war convention*. It is important to stress that it is our judgments that are at issue here, not conduct itself. We cannot get at the substance of the convention by studying combat behavior, any more than we can understand the norms of friendship by studying the way friends actually treat one another. The norms are apparent, instead, in the expectations friends have, the complaints they make, the hypocrisies they adopt. So it is with war: relations between combatants have a normative structure that is revealed in what they say (and what the rest of us say) rather than in what they do—though no doubt what they do, as with friends, is affected by what they say. Harsh words are the immediate sanctions of the war convention, sometimes accompanied or followed by military attacks, economic blockades, reprisals, war crimes trials, and so on. But neither the words nor the actions have any single authoritative source; and, finally, it is the words that are decisive—the “judgment of history,” as it is called, which means the judgment of men and women arguing until some rough consensus is reached.

The terms of our judgments are most explicitly set forth in positive international law: the work of politicians and lawyers acting as representatives of sovereign states, and then of jurists codifying their agreements and searching out the rationale that underlies them. But international law arises out of a radically decentralized legislative system, cumbrous, unresponsive, and without a parallel judicial system to establish the specific details of the legal code. For that reason, the legal handbooks are not the only place to find the war convention, and its actual existence is demonstrated not by the existence of the handbooks but by the moral arguments that everywhere accompany the practice of war. The common law of

Law and Order in International Society

Aggression

Aggression is the name we give to the crime of war. We know the crime because of our knowledge of the peace it interrupts—not the mere absence of fighting, but peace-with-rights, a condition of liberty and security that can exist only in the absence of aggression itself. The wrong the aggressor commits is to force men and women to risk their lives for the sake of their rights. It is to confront them with the choice: your rights or (some of) your lives! Groups of citizens respond in different ways to that choice, sometimes surrendering, sometimes fighting, depending on the moral and material condition of their state and army. But they are always justified in fighting; and in most cases, given that harsh choice, fighting is the morally preferred response. The justification and the preference are very important: they account for the most remarkable features of the concept of aggression and for the special place it has in the theory of war.

Aggression is remarkable because it is the only crime that states can commit against other states: everything else is, as it were, a misdemeanor. There is a strange poverty in the language of international law. The equivalents of domestic assault, armed robbery, extortion, assault with intent to kill, murder in all its degrees, have

but one name. Every violation of the territorial integrity or political sovereignty of an independent state is called aggression. It is as if we were to brand as murder all attacks on a man's person, all attempts to coerce him, all invasions of his home. This refusal of differentiation makes it difficult to mark off the relative seriousness of aggressive acts—to distinguish, for example, the seizure of a piece of land or the imposition of a satellite regime from conquest itself, the destruction of a state's independence (a crime for which Abba Eban, Israel's foreign minister in 1967, suggested the name "policide"). But there is a reason for the refusal. All aggressive acts have one thing in common: they justify forceful resistance, and force cannot be used between nations, as it often can between persons, without putting life itself at risk. Whatever limits we place on the means and range of warfare, fighting a limited war is not like hitting somebody. Aggression opens the gates of hell. Shakespeare's *Henry V* makes the point exactly:¹

For never two such kingdoms did contend
Without much fall of blood, whose guiltless drops
Are every one a woe, a sore complaint
'Gainst him whose wrongs gives edge unto the swords
That makes such waste in brief mortality.

At the same time, aggression unresisted is aggression still, though there is no "fall of blood" at all. In domestic society, a robber who gets what he wants without killing anyone is obviously less guilty, that is, guilty of a lesser crime, than if he commits murder. Assuming that the robber is prepared to kill, we allow the behavior of his victim to determine his guilt. We don't do this in the case of aggression. Consider, for example, the German seizures of Czechoslovakia and Poland in 1939. The Czechs did not resist; they lost their independence through extortion rather than war; no Czech citizens died fighting the German invaders. The Poles chose to fight, and many were killed in the war that followed. But if the conquest of Czechoslovakia was a lesser crime, we have no name for it. At Nuremberg, the Nazi leadership was charged with aggression in both cases and found guilty in both.² Once again, there is a reason for this identity of treatment. We judge the Germans guilty of aggression in Czechoslovakia, I think, because of our profound conviction that they ought to have been resisted—though not necessarily by their abandoned victim, standing alone.

The state that does resist, whose soldiers risk their lives and die, does so because its leaders and people think that they should or

that they have to fight back. Aggression is morally as well as physically coercive, and that is one of the most important things about it. "A conqueror," writes Clausewitz, "is always a lover of peace (as Bonaparte always asserted of himself); he would like to make his entry into our state unopposed; in order to prevent this, we must choose war . . ."³ If ordinary men and women did not ordinarily accept that imperative, aggression would not seem to us so serious a crime. If they accepted it in certain sorts of cases, but not in others, the single concept would begin to break down, and we would eventually have a list of crimes more or less like the domestic list. The challenge of the streets, "Your money or your life!" is easy to answer: I surrender my money and so I save myself from being murdered and the thief from being a murderer. But we apparently don't want the challenge of aggression answered in the same way; even when it is, we don't diminish the guilt of the aggressor. He has violated rights to which we attach enormous importance. Indeed, we are inclined to think that the failure to defend those rights is never due to a sense of their unimportance, nor even to a belief (as in the street-challenge case) that they are, after all, worth less than life itself, but only to a stark conviction that the defense is hopeless. Aggression is a singular and undifferentiated crime because, in all its forms, it challenges rights that are worth dying for.

The Rights of Political Communities

The rights in question are summed up in the lawbooks as territorial integrity and political sovereignty. The two belong to states, but they derive ultimately from the rights of individuals, and from them they take their force. "The duties and rights of states are nothing more than the duties and rights of the men who compose them."⁴ That is the view of a conventional British lawyer, for whom states are neither organic wholes nor mystical unions. And it is the correct view. When states are attacked, it is their members who are challenged, not only in their lives, but also in the sum of things they value most, including the political association they have made. We recognize and explain this challenge by referring to their rights. If they were not morally entitled to choose their form

of government and shape the policies that shape their lives, external coercion would not be a crime; nor could it so easily be said that they had been forced to resist in self-defense. Individual rights (to life and liberty) underlie the most important judgments that we make about war. How these rights are themselves founded I cannot try to explain here. It is enough to say that they are somehow entailed by our sense of what it means to be a human being. If they are not natural, then we have invented them, but natural or invented, they are a palpable feature of our moral world. States' rights are simply their collective form. The process of collectivization is a complex one. No doubt, some of the immediate force of individuality is lost in its course; it is best understood, nevertheless, as it has commonly been understood since the seventeenth century, in terms of social contract theory. Hence it is a moral process, which justifies some claims to territory and sovereignty and invalidates others.

The rights of states rest on the consent of their members. But this is consent of a special sort. State rights are not constituted through a series of transfers from individual men and women to the sovereign or through a series of exchanges among individuals. What actually happens is harder to describe. Over a long period of time, shared experiences and cooperative activity of many different kinds shape a common life. "Contract" is a metaphor for a process of association and mutuality, the ongoing character of which the state claims to protect against external encroachment. The protection extends not only to the lives and liberties of individuals but also to their shared life and liberty, the independent community they have made, for which individuals are sometimes sacrificed. The moral standing of any particular state depends upon the reality of the common life it protects and the extent to which the sacrifices required by that protection are willingly accepted and thought worthwhile. If no common life exists, or if the state doesn't defend the common life that does exist, its own defense may have no moral justification. But most states do stand guard over the community of their citizens, at least to some degree: that is why we assume the justice of their defensive wars. And given a genuine "contract," it makes sense to say that territorial integrity and political sovereignty can be defended in exactly the same way as individual life and liberty.*

* The question of when territory and sovereignty can rightly be defended is closely connected to the question of when individual citizens have an obligation to join the defense. Both hang on issues in social contract theory. I have discussed the

It might also be said that a people can defend its country in the same way as men and women can defend their homes, for the country is collectively as the homes are privately owned. The right to territory might be derived, that is, from the individual right to property. But the ownership of vast reaches of land is highly problematic, I think, unless it can be tied in some plausible way to the requirements of national survival and political independence. And these two seem by themselves to generate territorial rights that have little to do with ownership in the strict sense. The case is probably the same with the smaller properties of domestic society. A man has certain rights in his home, for example, even if he does not own it, because neither his life nor his liberty is secure unless there exists some physical space within which he is safe from intrusion. Similarly again, the right of a nation or people not to be invaded derives from the common life its members have made on this piece of land—it had to be made somewhere—and not from the legal title they hold or don't hold. But these matters will become clearer if we look at an example of disputed territory.

The Case of Alsace-Lorraine

In 1870, both France and the new Germany claimed these two provinces. Both claims were, as such things go, well founded. The Germans based themselves on ancient precedents (the lands had been part of the Holy Roman Empire before their conquest by Louis XIV) and on cultural and linguistic kinship; the French on two centuries of possession and effective government.⁵ How does one establish ownership in such a case? There is, I think, a prior question having to do with political allegiance, not with legal titles at all. What do the inhabitants want? The land follows the people. The decision as to whose sovereignty was legitimate (and therefore as to whose military presence constituted aggression) belonged by right to the men and women who lived on the land in dispute. Not simply to those who owned the land: the decision belonged to the landless, to town dwellers and factory workers as well, by virtue of

second question at length in my book *Obligations: Essays on Disobedience, War, and Citizenship* (Cambridge, Mass., 1970). See especially "The Obligation to Die for the State" and "Political Alienation and Military Service." But neither in that book nor in this one do I deal in any detail with the problem of national minorities—groups of people who do not fully join (or do not join at all) in the contract that constitutes the nation. The radical mistreatment of such people may justify military intervention (see chapter 6). Short of that, however, the presence of national minorities within the borders of a nation-state does not affect the argument about aggression and self-defense.